



CHAPTER clxx.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Blandford Water, Gisborough Water, North Pembroke-shire Water, and Gas Sheringham Gas and Water and West Gloucestershire Water. A.D. 1911.
[18th August 1911.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation Act 1911. Short title.

2. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

A.D. 1911.

SCHEDULE.

LIST OF ORDERS.

BLANDFORD WATER.—Order extending the limits of supply of the Blandford Waterworks Company Limited authorising the Company to raise additional capital and for other purposes.

GISBOROUGH WATER.—Order conferring further powers upon the Undertakers of the Gisborough Water Undertaking and amending the Gisborough Water Order 1871 and the Gisborough Water Order 1880.

NORTH PEMBROKESHIRE WATER AND GAS.—Order empowering the North Pembrokeshire Water and Gas Company to raise unissued capital by preference shares and for other purposes.

SHERINGHAM GAS AND WATER.—Order empowering the Sheringham Gas and Water Company to raise additional capital and for other purposes.

WEST GLOUCESTERSHIRE WATER.—Order authorising the West Gloucestershire Water Company to take a supply of water in bulk and to make agreements with reference thereto and for other purposes.

BLANDFORD WATER.

A.D. 1911.

Order extending the limits of supply of the Blandford Waterworks Company Limited authorising the Company to raise additional capital and for other purposes.

Blandford.

Preliminary.

1. This Order may be cited as the Blandford Water Order 1911 and the Blandford Water Order 1894 (in this Order referred to as "the Order of 1894") and this Order may be cited together as the Blandford Water Orders 1894 and 1911.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the Waterworks Clauses Act 1847 "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner") are (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of the Order of 1894 or this Order) incorporated with this Order. For the purposes of such incorporation the term "special Act" in the said Act shall mean this Order and the term "the company" shall mean the Undertakers.

Incorpora-
tion of
general Acts.

4. In this Order—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction:

Interpreta-
tion.

The expression "the new limits" means the several parishes within which the Undertakers are by this Order authorised to supply water;

The expression "the limits of supply" means the several parishes within which the Undertakers are by the Order of 1894 and this Order authorised to supply water;

The expression "the undertaking" means the undertaking by the Order of 1894 and this Order authorised;

The expression "the corporation" means the mayor aldermen and burgesses of the borough of Blandford Forum.

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Act, 1911.

A.D. 1911.

Undertakers.

Blandford.
Undertakers.

5. The Blandford Waterworks Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Extension of Limits.

Extension of
limits of
supply.

6. The Undertakers may supply water and shall have and may exercise subject to the provisions of this Order within the several parishes of Tarrant Hinton Stourpaine and Durweston all in the rural district of Blandford in the county of Dorset all and the like powers privileges and authorities for and in relation to the supply of water including the levying of rents rates and charges and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply as defined by the Order of 1894.

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company
may supply.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the district of any local authority included within the new limits the local authority of such district may provide a supply in the whole or any part of their district within the new limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Lands.

Further
powers to
acquire lands
by agree-
ment.

8. In addition to any other lands which the Undertakers are under the Order of 1894 authorised to take or purchase the Undertakers may by agreement purchase take on lease acquire and use and hold for the general purposes of the undertaking any lands and any easements rights or privileges (not being an easement right or privilege of water in which persons other than the parties to the agreement have an interest) in over or under any lands which they may require for such purposes Provided that they shall not create or permit a nuisance on any lands so held by them and that they

[1 & 2 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. clxx.]
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shall not at any time hold for the general purposes of the undertaking more than three acres of land in addition to the lands which they are by the Order of 1894 authorised to hold for those purposes Provided also that no building shall be erected on such lands except such as are required for or are connected with the purposes of the undertaking.

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Blandford.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the said Acts grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c. to Undertakers.

10. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in some Provisional Order confirmed by Parliament or some Act of Parliament.

Limiting powers to abstract water.

11. The provisions of section 16 of the Order of 1894 shall extend and apply to the new limits and to the powers conferred upon the Undertakers by this Order and to any mains pipes conduits and other works to be laid down or constructed by the Undertakers under the powers of this Order as fully and effectually as if the said section were expressly re-enacted in this Order.

For protection of London and South Western and Midland Railway Companies.

12. If any difference arises between the Undertakers and any road authority railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order for the purposes of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled unless otherwise provided by this Order by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences with road authority or railway or other company.

13. The construction in the parish of Langton-Long-Blandford in the county of Dorset by the Undertakers upon land belonging to them of an extension on its north and east sides of the reservoir authorised by the Order of 1894 as the same has been completed is hereby sanctioned and confirmed and the same shall be deemed to have been lawfully constructed and the Undertakers may maintain and use such reservoir as so extended for the purposes of the undertaking.

Confirming extension of existing reservoir

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Act, 1911.

A.D. 1911.

Additional Capital.

Blandford.
Additional
capital.

14. The limitation prescribed by section 9 of the Order of 1894 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional capital") not exceeding four thousand pounds in nominal amount. Provided that the nominal amount of the capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole fourteen thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to
be sold by
auction or
tender.

15.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerks of the corporation and of the rural district council of Blandford and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

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(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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Blandford.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

16. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of money.

17. The Undertakers shall not in any one year pay out of their profits any larger dividend on the additional capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of the said sum of seven pounds per centum per annum.

Limits of
dividend on
additional
capital.

18. In case in any year or in any half year (if the Undertakers declare a dividend half yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the

Dividends on
different classes
of ordinary
shares or stock
to be paid pro-
portionately.

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A.D. 1911. capital of the Undertakers a proportionate reduction shall be made in
Blandford. the dividends payable on each class.

Limit of
borrowing
powers.

19. Notwithstanding anything contained in section 10 (Borrowing powers) of the Order of 1894 the Undertakers may borrow on mortgage of their undertaking in addition to the sum they are already empowered to borrow a sum not exceeding one thousand pounds in respect of the capital authorised by the Order of 1894 and may also borrow any sum of money not exceeding one-third of the amount of the additional capital at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Miscellaneous.

Amendment
of section 8
of Order of
1894.

20. From and after the commencement of this Order the respective expressions "the undertaking" and "the limits of supply" in subsections (2) (4) (5) and (6) of section 8 of the Order of 1894 shall respectively be deemed to mean "the undertaking" and "the limits of supply" as defined by this Order and the words "the capital of the Undertakers" in subsection (2) of that section shall be deemed to include the additional capital. Provided that in the event of the purchase of the undertaking by the corporation at any time after five years from the commencement of this Order in arriving at the sum to be paid in respect of the additional capital the words "one hundred and ten pounds for every one hundred pounds" shall be substituted for the words "one hundred and twenty pounds for every one hundred pounds" in the said subsection (2). Provided also that any sum of money which the Undertakers shall have accumulated by way of a reserve fund out of undistributed profits whether in respect of the capital authorised by the Order of 1894 or of the additional capital shall remain the property of the Undertakers and shall not pass to the corporation in the event of the purchase by them of the undertaking at any time.

Rates pay-
able by
owners of
small houses.

21. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that if the Undertakers determine to charge the owners instead of the occupiers as aforesaid no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him

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or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1911.

Blandford.

22. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Provided that this section shall not apply to the case of two or more adjoining houses belonging to the same owner where the water rate is paid by such owner. Undertakers not bound to supply several houses by one pipe.

23. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the registered office of the Undertakers. Notice of discontinuance.

24.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

25. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of Order.

GISBOROUGH WATER.

Order conferring further powers upon the Undertakers of the Gisborough Water Undertaking and amending the Gisborough Water Order 1871 and the Gisborough Water Order 1880. Gisborough.

1. This Order may be cited as the Gisborough Water Order 1911 and the Gisborough Water Order 1871 the Gisborough Water Order 1880 (in this Order respectively referred to as "the Order of 1871" Short title and citation.

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Act, 1911.

A.D. 1911. and "the Order of 1880") and this Order may be cited as the
Gisborough Water Orders 1871 to 1911.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts and
interpreta-
tion.

3. The Waterworks Clauses Acts 1847 and 1863 are except where expressly varied by this Order or by the Order of 1871 and the Order of 1880 as amended by this Order incorporated with and form part of this Order and the several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Undertakers.

4. Robert Bell Turton of Kildale Hall Grosmont in the county of York John Henry Arthur Whitley of Bourton Much Wenlock in the county of Salop and Charles Gathorne Hill of Poole Court Yate in the county of Gloucester in whom the undertaking authorised by the Order of 1871 and the Order of 1880 is now vested and their heirs or assigns shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers". Provided that if at any time the undertaking is assigned to any body company or person such body company or person shall from the date of such assignment thereof be the Undertakers for the purposes of the Order of 1871 the Order of 1880 and this Order in lieu of the person or persons above mentioned but no such assignment shall have any validity or effect until after the approval of the Board of Trade to such assignment has been signified in writing signed by a secretary or assistant secretary of the said Board. Provided also that nothing in this Order contained shall prevent the Undertakers borrowing money on the security of mortgages of the undertaking not exceeding the amount by the Order of 1871 or the Order of 1880 prescribed or shall make the consent or approval of the Board of Trade necessary to the validity of any such mortgage.

Constant
supply.

5. Section 16 (Limits of pressure) of the Order of 1871 is hereby repealed and in lieu thereof the following provision shall be in force and have effect.

The water supplied by the Undertakers shall be constantly laid on under pressure but need not be delivered at any time at a greater height than can be reached by gravitation from the existing intercepting tank at or near Spa Wood.

Quality of
water.

6. As from the first day of January 1914 section 15 (Quality of water) of the Order of 1871 shall be repealed and in lieu thereof the following provisions shall from that date be in force and have effect.

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All water supplied by the Undertakers shall be properly and efficiently filtered and otherwise treated so as to prevent its acting on lead in such manner as to endanger the health of consumers and if the Undertakers make default under this section they shall be liable to a penalty not exceeding ten pounds for every day during which such default shall continue.

A.D. 1911.
Gisborough.

7. Notwithstanding anything contained in section 17 of the Order of 1871 the Undertakers shall not be compellable to furnish a supply of water for domestic purposes for any less sum than a charge at the rate of eight shillings and eightpence per annum.

Minimum rate for a supply of water for domestic purposes.

8. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of small houses.

9. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers.

Notice of discontinuance.

10. The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply to houses partly used for trade &c.

11. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Undertakers not bound to supply several houses by one pipe.

12. For preventing waste misuse undue consumption or contamination of the water of the Undertakers the following provisions shall be in force and have effect but only within the district in which the Undertakers are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

Regulations for preventing waste &c. of water.

The said provisions are as follows:—

- (1) The Undertakers may from time to time make regulations for the purpose of preventing the waste undue consumption or misuse or contamination of water and may by such regulations prescribe the size nature materials workmanship and strength and the mode of arrangement connection

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disconnection alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and forbid any arrangements and the use of the several things before mentioned or any or either of them which may allow or tend to waste or undue consumption misuse erroneous measurement or contamination Such regulations shall not apply to fittings in use at the commencement of this Order so long as they are kept in proper repair and are efficient and not dangerous to health :

- (2) No such regulations shall be of any force or effect unless and until the same shall have been submitted to and confirmed by the Local Government Board who are hereby empowered to confirm the same :
- (3) No such regulations shall be confirmed until after the expiration of one month after notice in writing to submit the same for confirmation together with a copy of the proposed regulations shall have been given by or on behalf of the Undertakers to the local authorities within the limits of supply who may within the said period of one month make such representations to the Local Government Board as they see fit :
- (4) Any such regulations in force for the time being shall be published by a copy thereof being kept at the office of the Undertakers which copy shall be open to the inspection of all persons at all reasonable times without payment and the Undertakers shall also furnish a printed copy of all such regulations to every person applying for the same on payment of a sum not exceeding sixpence for each copy :
- (5) A printed copy of any such regulations purporting to be made and to have been confirmed by the Local Government Board as aforesaid shall be evidence (until the contrary is proved) in all legal proceedings of the due making confirmation publication or existence of such regulations without further or other proof :
- (6) In case of failure of any person to observe such regulations as are for the time being in force the Undertakers may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly qualified officer repair replace or alter any pipes cocks cisterns or other apparatus whatsoever belonging to or used by such person and the expense of every such repair replacement

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or alteration shall be repaid to the Undertakers by the person on whose credit the water is supplied and shall be recoverable by the Undertakers in the same manner as the water rates in respect of the premises are recoverable.

A.D. 1911.
Gisborough.

13. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to be given before connecting or disconnecting meters.

14.—(1) The Undertakers may supply water for other than domestic purposes on such terms and conditions as the Undertakers think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply by measure.

(2) The price to be charged for a supply of water by measure shall not exceed one shilling per thousand gallons.

15. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

NORTH PEMBROKESHIRE WATER AND GAS.

Order empowering the North Pembrookeshire Water and Gas Company to raise unissued capital by preference shares and for other purposes.

North Pembrookeshire.

Preliminary.

1. This Order may be cited as the North Pembrookeshire Water and Gas Order 1911 and the Fishguard Water and Gas Act 1899 the North Pembrookeshire Water and Gas Act 1900 (in this Order referred to as "the Act of 1899" and "the Act of 1900" respectively) and this Order may be cited together as the North Pembrookeshire Water and Gas Acts 1899 to 1911.

Short and collective titles.

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Act, 1911.

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North Pembrokeshire.

Commencement of Order.

Incorporation of Acts.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

3. The provisions of the Waterworks Clauses Acts 1847 and 1863 and the Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 are incorporated with and form part of this Order except so far as the same are expressly varied by or are inconsistent with the provisions of the principal Acts or this Order:

Provided also that for the purpose of such incorporation section 35 of the said Gasworks Clauses Act 1847 shall be read and construed as though the words "in case the whole" down to the words "have been paid" (all inclusive) had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates of dividend as defined by this Order.

The said provisions of the Waterworks Clauses Acts and Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order.

Interpretation.

4. In this Order the expression "the principal Acts" means the Act of 1899 and the Act of 1900 and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Order "the undertaking" means the undertaking authorised by the principal Acts.

Limits of Order.

5. The limits within which the principal Acts and this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the limits as defined by the principal Acts.

Undertakers.

Undertakers.

6. The North Pembrokeshire Water and Gas Company incorporated by the principal Acts are the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Financial Provisions.

Power to raise unissued capital by preference shares.

7. The Undertakers may subject to the provisions of Part II. of the Companies Clauses Act 1863 attach a preferential dividend of not exceeding five pounds per centum to the balance or part of the balance of the unissued capital authorised to be raised by the Act of 1899 as amended by the Act of 1900 by the creation and issue of new preference

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shares but the Undertakers shall not issue any share of less nominal value than one pound nor shall any such share vest in the person or corporation accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

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North Pembroke-shire.

8. Except as by this Order otherwise provided the preferential capital created by the Undertakers under this Order and the new shares therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the existing capital of the Undertakers of the same class or description and the new shares were shares in that capital.

New shares to be subject to same incidents as other shares.

9. The new preference shares so created shall form part of the capital of the Undertakers and every person who becomes entitled to any such new shares shall in respect of the same be a holder of shares in the capital of the Undertakers and shall be entitled to a dividend with the other holders of shares of the same class or description proportioned to the whole amount from time to time called and paid on such new shares.

Dividend on new shares.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preferential shares.

11. The provisions of section 10 (Calls) section 12 (Receipt in case of persons not sui juris) and section 14 (Application of moneys) of the Act of 1899 shall apply to any preference shares issued under the authority of this Order.

Application of certain provisions of Act of 1899.

Supply of Water.

12. Subject to the provisions of the Waterworks Clauses Acts 1847 and 1863 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footpaths thoroughfares tramways and gas or water pipes.

Detection of waste.

13. The owner or occupier of any house within the limits of supply situate at a higher level than three hundred and eighty feet above Ordnance datum receiving or requiring a supply of water from the Undertakers shall if the Undertakers so determine provide use and maintain for the purposes thereof such cistern or cisterns of such size materials and workmanship as the Undertakers may

Power to require provision of cisterns.

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Act, 1911.

A.D. 1911. subject to and in accordance with the byelaws to be made and confirmed by the Local Government Board under section thirty-nine of the Act of 1899 prescribe and any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds. Provided always that in case of dispute between the Undertakers and any such owner or occupier as to any requirement of the Undertakers under this section such dispute shall be decided by a court of summary jurisdiction.

Power to hold lands for protection of works.

14. The Undertakers may hold any lands acquired by them which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Undertakers shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than such buildings and works as may be incident to or connected with their waterworks.

Power to drain such lands.

15. The Undertakers may in and upon any lands which they may hold for the purpose described in the last preceding section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Undertakers are empowered to take from being polluted fouled contaminated or discoloured and the Undertakers may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Provisions as to fouling of water.

16. For the prevention of the pollution of any waters over which the Undertakers have powers of user or of any watercourses through which any water may for the time being flow into any such waters the Undertakers may with the consent of the county council of Pembroke and of the district council in whose district such pollution occurs or of one of such councils if the other refuse such consent and decline to do the work themselves enforce the provisions of the Rivers Pollution Prevention Acts 1876 and 1893 or of the Public Health Act 1875 with respect to any such waters and watercourses or in respect of any nuisance which may exist in proximity thereto and the Undertakers with such consent as aforesaid shall have and may if they think fit from time to time exercise such or the like powers as may for the time being be exerciseable by such county council or district council as the case may be under any enactment for the prevention of the pollution of any such water or watercourse or for the

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prevention or abatement of such nuisance and the provisions of such enactment shall for the purpose aforesaid extend and apply mutatis mutandis to the Undertakers. Provided that if the county council and the district council in whose district the pollution occurs or is likely to occur refuse or neglect for the space of one month after being requested by the Undertakers by notice in writing under the hand of their secretary either to enforce the provisions of the said Acts or to consent to the enforcement thereof by the Undertakers the Undertakers may appeal to the Local Government Board who may give them such consent and thereupon the Undertakers may proceed to enforce the provisions of the said Acts.

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brokeshire.*

The Local Government Board upon the receipt of such appeal from the Undertakers may direct any inquiries into the matter thereof to be held by their inspectors which they may deem necessary before giving such consent as aforesaid and their inspectors shall for the purposes of such inquiry have all such powers as they have for the purposes of inquiries directed by the Local Government Board under the Public Health Act 1875.

Any expenses incurred by the Local Government Board in relation to any inquiry under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector shall be paid by and recoverable from the Undertakers or the county council or the district council or partly from one and partly from the others or either of them as the Local Government Board may determine.

Quality and Testing of Gas.

17. The prescribed number of candles shall be not less than fourteen.

Quality of
gas.

18.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Testing
quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when

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burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner, photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within six months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure.

19.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Supply of Gas.

Charge for
gas supplied
by means of
prepayment
meters.

20.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

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(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

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brokeshire.*

21.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or rents and charges and make such terms and conditions as may be agreed.

Power to
supply gas
fittings
Fittings not
to be subject
to distress.

(2) Any fittings now out on hire or let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

22.—(1) Subject as hereinafter provided all engines motors fittings apparatus and appliances of the Undertakers now out on hire or let by the Undertakers on hire under the provisions of this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines motors fittings apparatus and appliances are or shall be fixed.

Engines and
appliances
though fixed
to premises
to remain
property of
Undertakers.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors fittings apparatus and appliances as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

23. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working

Power to
take licences
for use of
patents.

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A.D. 1911. using or vending any invention in relation to the manufacture storage
North Pem- supply utilisation or distribution of gas or the conversion manufacture
brokeshire. or utilisation of any product obtainable in or arising from such manu-
facture or from the materials used therein.

As to con-
struction and
placing of
pipes be-
tween mains
and meters.

24. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas therein at any one time :
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after

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hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid:

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shire.*

- (7) The powers conferred by this section shall not apply to pipes and other fittings already placed in consumers' premises at the commencement of this Order.

25. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctua-
tors for gas
engines.

26. Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Provided that notice of the provisions of this section shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Gas con-
sumers to
give notice
to Under-
takers before
removing.

27. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Power to
refuse to
supply per-
sons in debt
for other
property.

28. When any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them from such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Undertakers
to pay in-
terest on
deposits.

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brokeshire.*

Power to
erect cot-
tages for
officers and
servants.

Power to
lay pipes in
streets not
dedicated to
public use.

Discounts.

Incoming
tenant not
liable to pay
arrears.

Repeal of
certain pro-
visions of
Act of 1899.

Costs of
Order. •

Miscellaneous.

29. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

30. The Undertakers may but only with the consent of the owner of the soil of such street on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with water or gas and for that purpose the Waterworks Clauses Acts 1847 and 1863 and the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 shall apply as if the street were a street within the meaning of those Acts.

31. The Undertakers may if they think fit allow discounts or rebates to consumers of water or gas in consideration of prompt payment of water or gas charges not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for water or gas charges.

32. In case any person supplied with water or gas by the Undertakers leaves the premises where such water or gas has been supplied to him without paying to them the charges for such supply or for meter rent due from him the Undertakers shall not be entitled to require from the next tenant of such premises the payment of the arrears left unpaid by the former tenant unless such incoming tenant has undertaken with the former tenant to pay or exonerate him from the payment of such arrears.

33. Section 41 (Power to supply gas fittings engines and other apparatus) section 44 (Pressure of gas) section 46 (Quality of gas) section 48 (Burner) and section 50 (Company to pay interest on money deposited as security for meter) of the Act of 1899 are hereby repealed.

34. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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Act, 1911.

SHERINGHAM GAS AND WATER.

A.D. 1911.

*Order empowering the Sheringham Gas and Water Company to
raise Additional Capital and for other purposes.*

Preliminary.

1. This Order may be cited as the Sheringham Gas and Water Short title.
Order 1911 and the Sheringham Gas and Water Act 1898 (in this
Order referred to as "the Act of 1898") and this Order may be
cited together as the Sheringham Gas and Water Act and Order 1898
and 1911.

2. This Order shall come into force and have effect upon the day Commence-
when the Act confirming this Order is passed which date is in this ment.
Order referred to as "the commencement of this Order."

3.—(1) So far as the same relate to the powers conferred by this Incorpora-
Order the provisions of the Companies Clauses Consolidation Act 1845 tion of Acts,
with respect to the following matters (that is to say):—

The distribution of the capital of the company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the
payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the company against the share-
holders;

The borrowing of money by the company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the company and the exercise of the
right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act
by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II.
(relating to additional capital) and Part III. (relating to debenture
stock) of the Companies Clauses Act 1863 the Companies Clauses Act
1869 and the Gasworks Clauses Act 1847 the Gasworks Clauses Act
1871 and the Waterworks Clauses Acts 1847 and 1863 as amended by

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A.D. 1911. subsequent Acts are hereby incorporated with this Order (except where
Sheringham. the same are expressly varied by or are inconsistent with the Act of 1898 or this Order) and form part of this Order.

(2) For the purposes of such incorporation the term "special Act" in the said Acts shall mean this Order and the term "the company" shall mean the Undertakers.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction. And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking authorised by the Act of 1898.

Undertakers.

Undertakers.

5. The Sheringham Gas and Water Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Additional Capital.

Additional
capital.

6.—(1) In addition to the capital authorised by the Act of 1898 (in this Order referred to as "the existing capital") the Undertakers may raise further additional capital not exceeding in the whole thirty thousand pounds (in this Order referred to as "the further additional capital") divided into twelve thousand pounds additional gas capital and eighteen thousand pounds additional water capital.

(2) The further additional capital may be raised by the creation and issue of ordinary stock or preference stock or wholly or partly by one of those modes and partly by the other. Provided that no greater amount than five thousand pounds additional gas stock and eight thousand pounds additional water stock shall be issued as preference stock and no stock shall vest in the person or corporation accepting the same unless and until the full nominal amount of such stock together with any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twelve thousand pounds in respect of their gas undertaking and eighteen thousand pounds in respect of their water undertaking.

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Act, 1911.

A.D. 1911.

7. Except as by this Order otherwise provided the further additional capital and the stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the further additional capital were part of the existing capital of the Undertakers of the same class or description and the new stock were stock in that capital and the provisions of the Act of 1898 as varied by this Order shall apply accordingly.

Sheringham.

Except as otherwise provided new stock to be subject to same incidents as other stock.

8.—(1) Notwithstanding anything in the Act of 1898 contained all stock forming part of the capital of the Undertakers shall after the commencement of this Order be issued in accordance with the provisions of this section.

Additional capital to be sold by auction or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply of the Undertakers and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits:

(B) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

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Sheringham.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863. and to the employees of the Undertakers and to the consumers of gas or the consumers of water supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered in accordance with the foregoing provisions of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective stocks sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective stocks as the case may be.

Application
of money.

9. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that all such sums shall be deemed to be part of the paid-up or nominal capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form a special purposes fund.

Limits of
dividend on
capital.

10. The Undertakers shall not in any year declare or make out of their profits any larger dividends on the further additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the further additional capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of so much of the further additional capital as may be issued as preference capital.

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Act, 1911.

11. Section 27 (the marginal note whereof is "Dividends on different classes of stock to be paid proportionately") of the Act of 1898 is hereby repealed and in case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the dividend at the authorised rate on each class of ordinary stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

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Sheringham.
Dividend on different classes of ordinary stock to be paid proportionately.

12. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any stock in the additional capital to which a preferential dividend shall be assigned.

Restriction as to votes in respect of preference stock.

13. The Undertakers may subject to the provisions of this Order borrow on mortgage of the gas undertaking and of the water undertaking respectively such further sum or sums as together with the amounts already borrowed by the Undertakers under the powers of the Act of 1898 upon mortgage of the gas undertaking or the water undertaking as the case may be shall not exceed in the whole one-third part of the total amount of the original and additional and further additional capital by the Act of 1898 and this Order authorised to be raised and at the time actually issued by stock in the capital of the gas undertaking or the water undertaking as the case may be. But no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

14. Section 36 (For appointment of a receiver) is hereby repealed as from the commencement of this Order but without prejudice to any appointment heretofore made or to any proceedings pending at the commencement of this Order and in lieu thereof the mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers on mortgage.

Appointment of a receiver

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Sheringham.
Debenture
stock.

15. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 37 (Debenture stock) of the Act of 1898.

As to con-
version of
borrowed
money into
capital.

16. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the creation and issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital any money borrowed under the provisions of this Order.

Provisions of
Act of 1898
to apply.

17. The provisions contained in the following sections of the Act of 1898 namely:—

Section 37 Debenture stock;

Section 38 Priority of mortgages and debenture stock over other debts; and

Section 39 Mortgages to be charged upon and payable out of assets of company;

shall apply mutatis mutandis to the Undertakers exercising the powers of borrowing and creating debenture stock by this Order conferred and to all mortgages and debenture stock and moneys raised and created under the powers of this Order.

Limiting
powers of
Undertakers
to abstract
water.

18. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in some Act of Parliament or Provisional Order.

Costs of
Order.

19. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

WEST GLOUCESTERSHIRE WATER.

*West Glou-
cestershire.*

*Order authorising the West Gloucestershire Water Company to
take a supply of Water in bulk and to make agreements
with reference thereto and for other purposes.*

Short title
and citation.

1. This Order may be cited as the West Gloucestershire Water Order 1911 and the West Gloucestershire Water Acts 1884 to 1909 and this Order may be cited together as the West Gloucestershire Water Acts and Order 1884 to 1911.

[1 & 2 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. clxx.]
Act, 1911.

A.D. 1911.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed.

West Gloucestershire.
Commencement
of Order.

3. The Waterworks Clauses Acts 1847 and 1863 are except where expressly varied by this Order incorporated with and form part of this Order. Provided that section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

Incorporation
of Acts.

4. The West Gloucestershire Water Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

5. In this Order the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking of the Undertakers for the time being authorised by the Acts and Orders relating to the Undertakers and the expression "the limits of supply" means the limits within which the Undertakers are for the time being authorised to supply water.

Interpretation.

6. The Undertakers may take and the Clutton Rural District Council may afford a supply of water at such point or points within or at the boundary of the limits of supply upon such terms and conditions and for such period as may be agreed upon and the Undertakers may use such supply for all or any of the purposes of the undertaking within the rural district of Clutton and not otherwise.

Supply of
water by
Clutton
Rural District
Council to Under-
takers.

7. The Undertakers on the one hand and the local authority of any district partly within and partly without the limits of supply on the other hand may with the consent of the Local Government Board enter into and carry into effect contracts and agreements upon such terms and conditions and for such period as may be agreed upon with respect to the supply of water in bulk to the Undertakers by such authority and with respect to the conveyance and delivery of such water to the Undertakers and the laying of pipes necessary therefor and the Undertakers may use such supply for all or any of the purposes of the undertaking within the district of such authority and not otherwise.

Power to
make agree-
ments.

8. The Undertakers may apply to the purposes of this Order to which capital is properly applicable any moneys which they are already

Application
of existing
capital.

[Ch. clxx.] *Gas and Water Orders Confirmation* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

West Glou-
cestershire.

Costs of
Order.

authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised:

9. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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